



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00425-01 | 5908 Ridge Road – Annexation
Date: January 9, 2023

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/9/2023
- Public Services Committee 1/17/2023
- Second reading 1/23/2023
- Public Services Committee 2/7/2023
- Third and final reading 2/13/2023

Related Items:

- UDC-22-00425: Zoning Map Amendment
- UDC-22-00425-02: Final Plat

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED SOUTHWEST OF THE INTERSECTION OF RIDGE ROAD AND HOLLAND COURT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That Bedrock Dev LLC, owners of:

a parcel of land being a portion of Tract 25, Dell Range Addition and located in the northwest one-quarter of the northwest one-quarter of Section 22, Township 14 North, Range 66 West of the 6th Principal Meridian; being more particularly described as:

beginning at a found aluminum cap on a point of intersection of the west line of said Section 22 and the south right of way of Holland Ct; thence along said south right of way S89°31'21"E at a distance of 619.35 feet to a found iron pipe on the westerly right of way line of Ridge Road; thence continuing along said westerly right of way line S00°02'45"W at a distance of 753.31 feet to a point; thence leaving said westerly right of way line of Ridge Road N89°23'37"W at a distance of 619.54 feet to a found iron pipe on the west line of said Section 22; thence N00°03'36"E at a distance of 751.91 feet along the west line of said Section 22 to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;

- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential by the Laramie County Commissioners;
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY
JANUARY 9, 2023
STAFF REPORT

FILE: UDC-22-00425-01: 5908 Ridge Road - Annexation

REQUEST: An annexation of 10.7 acres of land

LOCATION: West of Ridge Road, south of Storey Boulevard

APPLICANT: Gateway Construction - Jason Stephan

AGENT: AVI - Brad Emmons

OWNERS: Bedrock Dev LLC

PURPOSE: To allow apartment development

PREPARED BY: Seth Lloyd, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 10.7 acres of land to develop the property with apartments. The land is currently developed with one rural-residential style dwelling. A zone change and expedited preliminary plat is proposed concurrently with this annexation. All applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-1 to City NR-3.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-1 Agricultural and Rural Residential	Rural residential
North	Urban Residential	County A-1, County MR Medium-density Residential	Rural residential
South	Urban Residential	County A-1, MR Medium Density Residential	Vacant, single-family residential
East	Urban Residential, Urban Transition Residential	NR-3 Neighborhood Residential – High Density, County A-1, MR	Apartments, rural residential, single-family residential
West	Urban Residential	MR	Single-family residential

The property is currently zoned with an agricultural zone in the County. The property is concurrently proposed to be annexed and rezoned to the City zone of NR-3. The City NR-3 zone is intended for high-density residential development in a walkable format.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the west, north, and east and is part of a County pocket. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities exist in the area.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 77% contiguous, along all but the southern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on December 6, 2022. The public hearing for this annexation is scheduled for January 9, 2023. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is December 6, 2022. The earliest confirmation of delivery was dated December 7, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the annexation of County pockets. This is part of a County Pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

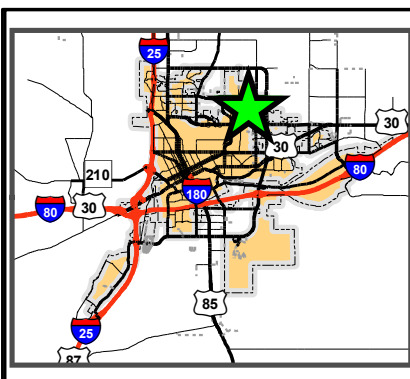
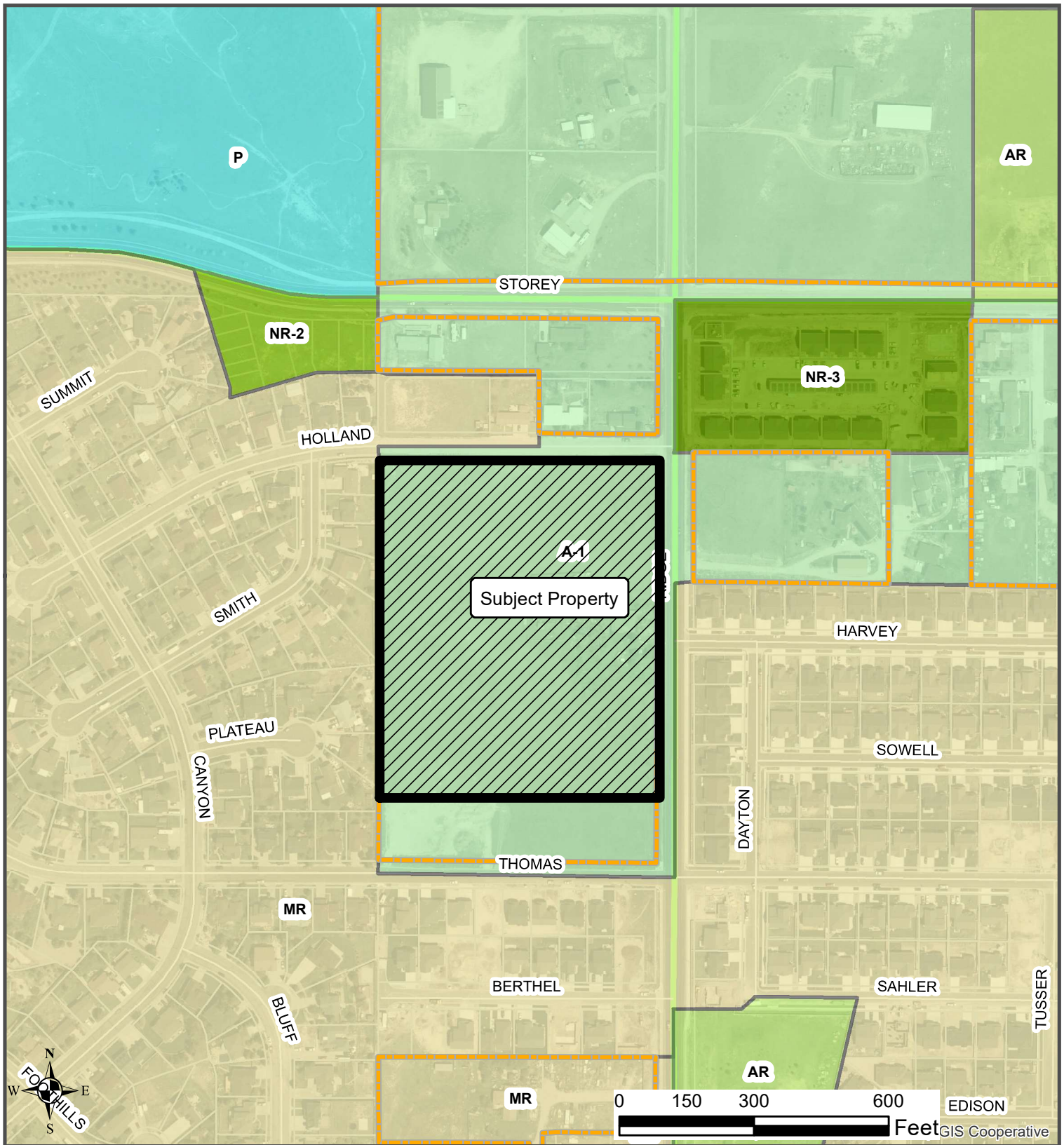
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

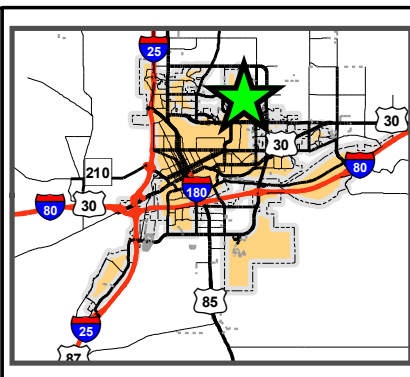
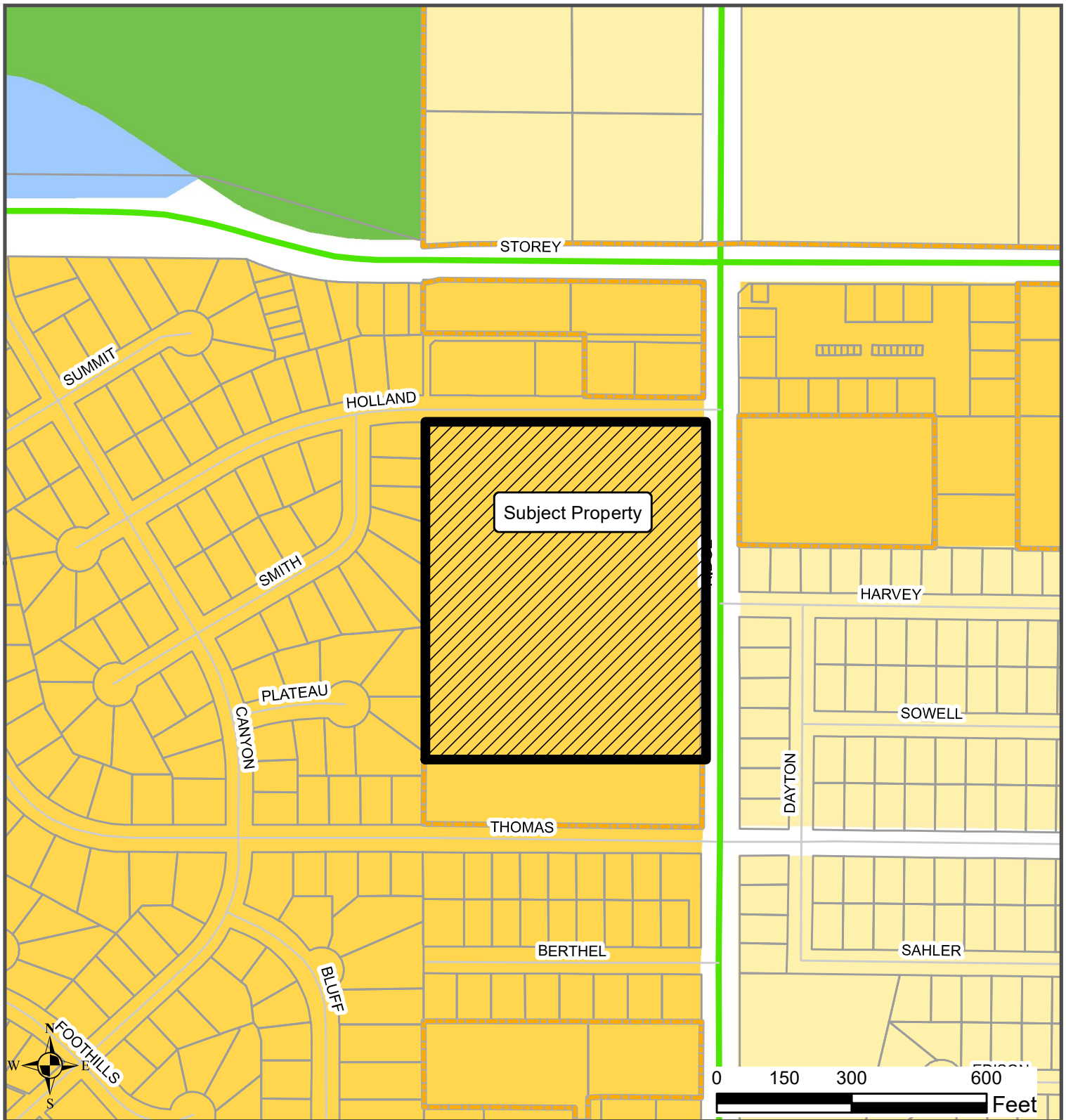


Attachment 1: Zoning Map UDC-22-00425

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00425

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Annexation Application

Submission date: **16 November 2022, 8:22PM**
Receipt number: **24**
Related form version: **13**

General Information

Applicant Name: **Gateway Construction - Jason Stephan**

Applicant Address: **1820 Dillon Ave Ste. 100A**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **3076328950**

Applicant Email: **jason-stephan@gateway-const.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Bedrock Dev LLC**

Owner Address: **PO Box 3244**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	3076328950
Owner Email:	jason-stephan@gateway-const.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	ridge loa_001.pdf
Project Location (Street Address or General Location):	5908 Ridge Road
Assessor's Parcel ID number(s)	R0017452
Total Project Area	10.7
Current Zoning	A-1
Proposed Zoning	NR-3 - Neighborhood Residential - High Density

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	DELL RANGE ADDITION: SOUTH 1/2 TRACT 25 LESS THE SOUTH 144-1/2' PLUS
Formal Annexation Petition	ridge petition_001.pdf
Board of Public Utilities Clearance Form	2022116_North Ridge Apt Annex Clearance.pdf
Annexation Map	4597_ANNEXATION.pdf
Final stamped and signed mylars are required prior to scheduling for Governing Body introduction.	

Signature / Certification

Applicant Signature	Name of signatory: Brad Emmons  Uploaded signature image: brad emmons.jpg
---------------------	---

Please enter an email address for an email receipt.

emmons@avipc.com

